



File No.: EXP202206104

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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following C/ Jorge Juan, 6

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BACKGROUND

FIRST: Claim

A.A.A. (hereinafter, the claiming party) filed a claim on 17/05/2022 before the Spanish Agency for Data Protection against SOCIEDAD COOPERATIVA ANDALUZA AGRARIA B.B.B., located at ***ADDRESS.1, with NIF ***NIF.1 (hereinafter, the claimed party). The reasons for the claim are as follows:

The claimed party convened an Ordinary General Assembly for the “next ***DATE.1”, including an agenda signed on 3/05/2022, which was communicated to the members. In its first item, it states: “deliberation and secret voting on the sanctioning file opened against the member (name and surname of the claimant), for non-compliance with the obligations of the member.”

The claimant provides a copy of this agenda, which indicates that the meeting is established in accordance with the provisions of “articles 22 to 31 of the Social Statutes,” and includes other aspects in the agenda such as the “report, presentation, and approval, if applicable, of the social management of the accounts for the 20/21 campaign and proposal for the distribution of results.”

The claimant points out that previously, the claimed party accepted their voluntary resignation as a member. They provide a copy of the response obtained, signed by the claimed party on 3/12/2020, highlighting:

- It responds to the claimant's letter dated 2/12/2020, “in which they express the voluntary decision to resign from the cooperative society,” with this detail:

a) - The claimed party “accepts your voluntary resignation under the terms established in article 15.1 and ss. of the Social Statutes approved in April 2016,” “considering your communication as notice and effective from the date of receipt thereof at headquarters,” “therefore, the effectiveness of your resignation from this Cooperative Society will occur one year after the receipt of your resignation request.”

b) - “Consequently, you are obliged to fulfill your duties and rights as a member of this Cooperative Society and, therefore, to contribute the olive harvest production until the effective date of your resignation, as you maintain your status as a member during that period.”

Also regarding the reimbursement of their contributions, settlement, and deadline, it indicates: “In any case, regarding any other rights you may have as a result of your voluntary resignation from the Cooperative Society, they will be determined in accordance with the provisions of articles 15 and 52 of the Social Statutes approved in April 2016 and the Law on Andalusian Cooperative Societies and its regulatory development.”

SECOND: Transfer of the claim.

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In accordance with article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 31/05/2022, the claim was transferred to the claimed party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, and more specifically, of:

- “a. The decision made regarding this claim.
- b. In the event of exercising the rights regulated in articles 15 to 22 of the GDPR, proof of the response provided to the claimant.
- c. Report on the causes that led to the incident that originated the claim.
- d. Report on the measures taken to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.
- e. Any other information deemed relevant.”

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of 1/10 on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of article 43.2 of the LPACAP on 11/06/2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail, which was duly notified on 23/06/2022. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and were informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this transfer letter.

THIRD: Admission to processing.

On 16/08/2022, in accordance with article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

FOURTH: Preliminary investigation actions.

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in article 57.1 and the powers granted in article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

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in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following points:

On 09/09/2022, a request for information was made available to the responding party in the DEHÚ regarding the following points:

1. The request for the information contained in the transfer document of the complaint is reiterated: Additionally, information is required regarding:
2. What is the legal basis on which you rely to carry out the processing of the data that involves the inclusion in the Agenda of the Ordinary General Meeting of the Cooperative Society, communicated to the members of the entity on 3/05/2022, of the proposal for deliberation and voting on a sanctioning file opened against the complainant as a member?
3. What data of the complainant does the Cooperative Society possess? And which of those data have been communicated to the other members in the communication of the Agenda? And what is the legal

basis for the communication of the complainant's data to the other members?

4. Is there any procedure for the deletion and suppression of the data of individuals who resign from the Cooperative after the effectiveness period of the resignation? If so, what does that procedure consist of?

Documentation evidencing the response to this request for information must be provided, as well as any documentation deemed appropriate for the defense of your interests and rights.

It is understood that the notification of the request is automatically rejected by the responding party, as it has not been accessed within ten days from the notification being made available to them in the DEHÚ.

Therefore, on 28/09/2022, the request for information was reiterated by postal means, with notification to the responding party taking place on 06/10/2022.

On 18/02/2023, a response to the information requests was received in which the responding party states regarding the requested information:

a) "Regarding the decision made concerning the complaint, the Cooperative Society proceeded to block the complainant's data as soon as it became aware of the complaint. This data blocking has consisted of the identification and reservation of the same, adopting technical and organizational measures to prevent its processing, including its visualization. They have only been used for the claim of the responsibilities that the complainant has pending with the Cooperative Society.

b) "The COOPERATIVE SOCIETY B.B.B. has no record that the complainant, A.A.A., has made any request to exercise the rights regulated in the

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Articles 15 to 22 of the GDPR, that is, he has not exercised any of the rights of access, rectification, erasure, restriction of processing, data portability, and/or objection in a specific manner.

c) Regarding the reasons that have motivated the incident that led to the complaint, this Subdirectorate is informed that "Mr. A.A.A. voluntarily requested to resign as a member of the cooperative in accordance with the Statutes of the Society."

"Given that members have a series of obligations and responsibilities according to Article 11 of the Statutes, Mr. A.A.A. was required to pay a monetary amount to cover an outstanding investment owed to the Cooperative and, furthermore, in the 2020/2021 campaign, he had not contributed the corresponding kilos of raw material as per his status as a member, which is why a file was opened that was notified to him through all available means, without receiving any response. In light of this situation, the Cooperative decided to file a lawsuit against him. For this, prior approval by an absolute majority of the General Assembly was required, so the Agenda with the matters to be discussed was sent to the members of the Assembly."

d) Regarding the measures adopted by the Cooperative to prevent such incidents from occurring, it should be noted that the company has a protocol for the processing of personal data, which is attached to this document as DOCUMENT NO. 3, "processing of personal data of the Cooperative Society." The individuals in the administration area of the cooperative also completed a course on the protection and processing of personal data. Document 3, dated 06/16/2022, version 3.0, was prepared by a Consulting and Management entity. The index includes, among other sections, confidentiality and information, workers, security/organizational and technical measures, functions and designations, and register of processing activities (RAT). Within the document, ANNEXES are detailed, and in the RAT, it does not specify where the members would be categorized; it includes: clients, budgets, suppliers, Board of Directors, employees, time control, interns, candidates, video surveillance, web contacts, protocol for action against sexual harassment.

It also highlights a list of the functions and obligations of users with access to data and information systems regarding mandatory security measures and confidentiality of information and use of email.

"After being notified of this complaint to the Spanish Agency for Data Protection, it has been decided to appoint a Data Protection Officer to ensure the proper processing of personal data handled by the

Cooperative.”

e) “Regarding the basis of legitimacy on which we rely to carry out the processing of the data that is the subject of the complaint, it is the legitimate interest, regulated in Article 6.1.f) of the General Data Protection Regulation (GDPR), which establishes the following:

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"The processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that these interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child."

Given that this party represents a Cooperative Society, it should be noted that its activity is carried out responsibly and in solidarity. Therefore, its members, in addition to participating in the capital, also engage in the corporate activity by providing their labor, satisfying their consumption, or utilizing its services to add value to their own business activity.

Thus, if one of the individuals who is part of the society does not contribute the production to which they committed at the time of formalizing their incorporation, it causes harm to the other members of the cooperative, making their identification necessary so that the cooperative members can make an informed decision regarding the initiation of a sanctioning procedure.

By not having contributed the production in the 2020/2021 campaign in which Mr. A.A.A. was a member, this has caused harm to the other members of the cooperative and generated a debt, which gives the other members the right to know this circumstance and to have all the information related to it in order to decide regarding the initiation of a sanctioning procedure.

On this point, Article 16 b) of Law 27/1999, on cooperatives, recognizes the free access of members to the Register Books of the cooperative, as well as to the Minutes Book of the General Assembly, and, if requested, the Board of Directors must provide a certified copy of the agreements adopted in the General Assemblies.

In this same sense, section f) of the aforementioned Article 16 allows members to request information about the operation of the cooperative under the terms provided in the Bylaws, and, in particular, regarding information that affects their economic and social rights.

For the reasons stated above, this information can in no case be concealed from the members of the cooperative, as all of them have the possibility and the right to access it."

f) "Regarding the data of the claimant held by the Cooperative Society, only the following data related to Mr. A.A.A.'s status as a member is retained, solely for the purpose of possible requirements for the processing of the ongoing judicial procedure between the cooperative and Mr. A.A.A.:

- Name and surname
- Member number
- ID number
- Date of registration
- Address

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- Mobile phone
- Settlement account
- Tax regime

It is also made known that in the communication of the Agenda, only the name and surname of Mr. A.A.A. have been communicated to the other members of the cooperative, with the means of

communication used being an email sent exclusively to the members."

g) "Regarding the possession by the cooperative of any procedure for the deletion and removal of data of individuals who resign from the Cooperative after the period of effectiveness of the resignation, the Cooperative has a protocol for the destruction of automated and non-automated data and a paper shredder."

FIFTH: New request for information in the preliminary investigation proceedings:

On 01/03/2023, a new request is made to the party being claimed to provide the following information:

"1.- Copy of the Bylaws of the Cooperative Society.

2.- Document of registration of the claimant as a member of the Cooperative."

This request is addressed by the claimed party on 02/03/2023, presenting:

a) Copy of the Bylaws of the Cooperative Society and a copy of the olive cultivation declaration of the claimant dated 27/04/1987, along with a copy of the member registration entry and a copy of the ID of the claimed party issued in 1986.

The corporate purpose of the cooperative is according to Article 2 of the Bylaws, to mention part of it:

"The milling of the olives of the members and of the Cooperative Society, storage, packaging, distribution, marketing, and sale of the olive oils obtained and all other products and by-products of the olive grove.

The milling of products from the members and the Cooperative Society for the obtaining of oils and by-products generated by any type of seeds other than olives, storage, packaging, distribution, and marketing.

Preparation, sale, distribution, and exploitation of agricultural and livestock products of individual members or of the cooperative society.

To acquire, prepare, produce, and manufacture by any means, for the cooperative for the members' farms, necessary or convenient elements for agricultural production and promotion, such as seeds, fertilizers, feeds, insecticides, and other products to combat pests in the field and diseases of livestock, machinery, tools, fuel services for the members, repair workshop,

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acquisition of all kinds of items for subsequent retail sale to the members and, in general, the provision of any other supply or service for the improvement of agriculture and livestock.

To preserve, classify, transform, manipulate, transport, distribute, and market, even directly to the consumer, the products derived from the operations of the cooperative society and its members, adopting, when appropriate, the Statute of agricultural producers' organization.

To bring to market the entirety of the production through the grouping of producers in which it is integrated, making it available to the same for it to be marketed in the name and on behalf of the Cooperative Society.

Article 11 of the Statutes of the Cooperative Society establishes the "obligations of the members," among which is included in letter i) "the obligation of the members to deliver the entirety of the production of goods to the Cooperative Society (principle of exclusivity)," qualified as essential and fundamental, and its violation may be considered a very serious and fraudulent conduct if the member fails to comply (art 11.b).

In letter k) of section 2.3 of article 12, very serious offenses are established, among others: "the failure to comply with the economic obligations contracted with the cooperative, the failure to disburse, within the established deadlines, the contributions to integrate the share capital, and the non-payment of income and periodic fees when the delay in compliance exceeds more than 60 days."

Section four of article 12 contains the disciplinary procedure establishing that "the imposition of any of the infractions provided for in section 3 of this article, that is to say, the very serious infractions, is an inalienable power of the Board of Directors and shall be adjusted to the following rules:

a) The sanction shall be agreed upon by the Board of Directors as a result of a disciplinary file initiated for that purpose with the hearing of the interested member...

c) The reasoned agreement of sanction must be made within a maximum period of 6 months, counting from the day of the initiation of the disciplinary file and must be communicated in writing to the sanctioned member. After this period, without an agreement having been reached, the file shall be automatically deemed closed without prejudice to the right of the cooperative to exercise any legal actions that may assist it in claiming the responsibilities in which the member may have incurred." According to section 4.1 of article 12 of the Statutes, "The disciplinary file shall be initiated with the following phases:

a) It begins by majority agreement of the Board of Directors...

d) The agreement of the Board of Directors must be communicated in writing to the sanctioned member. The period to file an appeal against the sanction agreement shall be one month counted from the day the notification was received.

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e) The appeal against the sanctioning agreement must be submitted to the Governing Council and addressed to the General Assembly, which must include the matter as the first item on the agenda in the first General Assembly held, whether ordinary or extraordinary. The General Assembly will resolve by secret ballot and will notify the sanctioned member of the agreement within one month from its holding.

Article 15 regarding voluntary resignations establishes in its first section that: "the member may voluntarily resign from the cooperative societies at any time by giving written notice to the Governing Council. The period for voluntary resignation shall be one year, and 'the resignation shall be deemed effective at the end of the notice period.'"

Article 28, "the Governing Council nature and competence," establishes in point 1 that it is the governing, management, and representation body of the Cooperative Society and is subject to the law of Andalusian cooperative societies, these Statutes, and the general guidelines set by the General Assembly." It includes a President, who was the one who convened the meeting subject to the claim. 28.2- "It is the responsibility of the Governing Council to exercise any powers not reserved by the law of Andalusian cooperative societies or by these Statutes to other social bodies. The following powers are attributed to the Governing Council"

...

k) "to agree on what it deems appropriate regarding the exercise of rights and judicial or extrajudicial actions that correspond to the cooperative, holding its representation before authorities, agencies, and officials, judges, and courts of any jurisdiction, both ordinary and special, in all matters in which the cooperative is interested, being able to confer to lawyers and attorneys, social graduates, representatives, and agents, general or special powers, for all and part of those with the powers it deems appropriate for each case, including those to promote, initiate, how to process, how to restart, reach agreements and desist from conciliations, instances, procedures, files, lawsuits, causes, claims, ordinary and extraordinary appeals, actions, claims, and any kind of proceedings, since to request the suspension or to withdraw from all those at any stage of the procedure and for whatever else is necessary, including judicial transition with full breadth."

r) to decide on any matter of interest for the proper functioning of the Cooperative Society, even if it is not expressly mentioned in the previous sections, in such a way that in no case and by lack of enumeration can there be any difficulty in administering the cooperative due to lack of express powers for it."

Furthermore, this is a "determination of powers that is merely indicative and does not limit in any way the broad powers that correspond to it and are necessary for governing, directing, and managing the business and interests of the Cooperative Society in everything that is not expressly reserved by the law of cooperative societies."

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Andalusian cooperatives or these Statutes to other social bodies.” “Those matters attributed to the Board of Directors by law or these Statutes may not be decided by other bodies of the society” (art. 28.2 of the Statutes).

Article 19 of the Statutes states: “The General Assembly, constituted by the members of the cooperative, is the supreme body for expressing the social will in matters assigned to it by the Andalusian Cooperative Societies Law and these Statutes.”

19.3 “The ordinary General Assembly convened by the Board of Directors must meet annually, within six months following the closure of the previous economic year, to analyze the social management, approve the annual accounts if appropriate, and distribute positive results or allocate losses. It may also decide on any other matter included in its agenda.”

Article 8 of the rights of members lists among others:

- To make proposals, attend, and participate with voice and vote in the adoption of agreements of the General Assembly and other social bodies of which they are a part.
- To obtain information on any aspect of the operation of the Cooperative Society in the terms legally established by the Cooperative Societies Law.
- To receive interest when appropriate in the terms and manner agreed upon by the General Assembly.
- To receive the amount of the liquidation corresponding to their contribution in the cases legally established.
- Others provided for in the Andalusian Cooperative Societies Law or in these social Statutes.

Regarding the right to information, Article 9 states that everyone can exercise it under the terms and conditions expressly regulated in Article 19.1 d of the Andalusian Cooperative Societies Law, Article 21 of the regulations of Andalusian cooperative societies, and those derived from these Statutes or from the agreements of the General Assembly.

Article 9.2 b) of the Statutes of the respondent indicates that in any case the member shall have the right to:

- Examine the register book of members and contributions to the capital of the Cooperative Society and the minutes book of the General Assembly.
- Likewise, the Board of Directors must provide the member who requests it with a certified copy of the agreements of the Board of Directors that affect them individually or particularly.
- It is also provided in point 9.2 d that when the General Assembly has to address the accounts of the economic year according to the agenda, they will be previously made available at the registered office.

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SIXTH: Agreement to initiate

On 07/13/2023, the director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against the ANDALUSIAN AGRICULTURAL COOPERATIVE B.B.B., with NIF ***NIF.1, for the alleged infringement of the GDPR in the articles: - 5.1. f) of the GDPR, in accordance with Article 83.5.a) of the GDPR and classified for prescription purposes as very serious in Article 72.1 a) of the GDPR.

- 32 of the GDPR, in accordance with Article 83.4.a) of the GDPR, and for prescription purposes, classified as serious, according to Article 73.f) of the LOPDGDD.”

“THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanctions that may correspond would be administrative fines with the following amounts:

- Article 5.1.f) of the GDPR, with an administrative fine of 2,000 euros.

- Article 32 of the GDPR, with an administrative fine of 2,000 euros.”

No allegations are received against the initiation agreement.

SEVENTH: Start of the evidence collection period

On 04/01/2024, it was decided to initiate a period of evidence collection, practicing the following:

1. The complaint filed by the complainant and its documentation, the documents obtained and generated during the admission phase of the complaint, which are part of the procedure

AI/00312/2022, are considered reproduced for evidentiary purposes.

2. The respondent is requested to provide a copy of the minutes of the meeting held on ***DATE.1, in the point where the subject of the complaint was discussed and also if there were any other points connected to it.

On 04/12/2024, a response is received from the respondent, indicating that they provide document 1, from the minutes of the Ordinary General Assembly convened by the President and the Board of Directors, held on ***DATE.1. The agenda includes number 1:

“Deliberation and secret voting on the sanctioning file opened against the member Mr. A.A.A. for non-compliance with the obligations of the member.”

At that point, it is indicated before the voting that the complainant “has submitted a document that is available to all members.” “Voting proceeds, the number of members present and represented is 37, with the result of said...”

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Voting results: 34 in favor, 2 against, and 1 abstention. Therefore, the Assembly ratifies this Governing Council to continue with the disciplinary proceedings against the member.

3. The respondent is requested to inform on what date disciplinary proceedings were opened against the claimant and that, as indicated, the claimant could not be notified, providing a copy of the agreement that was sent to the claimant. Administrative status of said disciplinary proceedings.

The respondent indicates that the proceedings were initiated on ***DATE.2 by the Governing Board. It provides the "Minutes of the Governing Board of ***DATE.2" in document 2. In it, the member number is included, and the initiation is motivated by "the lack of contribution of harvest to the current campaign 20/21" stating "has not contributed any kg," accompanied by a table of the kilos contributed in previous campaigns to emphasize "given the evolution of the contributions of said member."

The respondent indicates that "what could not be notified to the claimant were two prior communications," one dated 30/03 and another dated 2/06/2021, in which, according to the text of the accompanying copy (model of writing) in documents 3 to 6, explanations were requested as to why no olives had been contributed in the 20/21 campaign and a warning of the sanction was issued, along with proof of certified letters sent, without evidence of the results of the delivery attempts.

Regarding the status of the disciplinary proceedings, it states that "it is pending judicial resolution."

4. The respondent is requested to inform which statutory provision provides that the decision to take legal action against a member for non-compliance with their obligations corresponds to the General Assembly.

It stated that it is found in Article 12.4 of the Statutes, "which outlines the disciplinary procedure and the rules to which it must adhere." In document 7, it provides the Social Statutes.

Article 12.4 of these Statutes, regarding "disciplinary procedure," establishes the principle that "the sanction will be agreed upon by the Governing Council as a result of the disciplinary proceedings initiated for that purpose," that the motivated sanction agreement must be made within a maximum period of six months, and that "if this period elapses without an agreement being reached, the proceedings will be automatically considered closed, without prejudice to the cooperative's right to exercise any legal actions that may assist in claiming the responsibilities in which the member may have incurred."

Section 12.4.1, which specifies the phases of the disciplinary proceedings, states in point c) that the Governing Council will adopt an agreement on the infringement committed and the sanction to be

applied, and that in the case of "an appeal against the sanctioning agreement," it must be presented to the Governing Council and addressed to the General Assembly, which must include the matter as the first item on the agenda in the first General Assembly held, whether ordinary or extraordinary. The General Assembly will resolve by secret ballot and notify the agreement to the sanctioned member within one month from its celebration (12.4.1 e).

5. The respondent is requested to inform why, if the intention was to initiate legal actions, the agenda included "deliberation and secret voting on the sanctioning proceedings opened against the claimant member."

It responded that this is as stated in Article 12.4.1 e) of the Cooperative Statutes. This article refers to the "appeal against the sanctioning agreement, which must be presented to the Governing Council and addressed to the General Assembly, which must include the matter as the first item on the agenda in the first General Assembly held... The General Assembly will resolve by secret ballot and notify the agreement to the sanctioned member..."

6. The respondent is requested to inform within ten days about the number of members, the territorial scope of the Cooperative, and to provide a copy of the record of activities for the processing of personal data related to cooperative members.

In its response, it indicated that there are approximately 300 members, within the province of Jaén. The entity has a record of activities for the processing of data related to "cooperative members." It provides document 8 with the mentioned RAT, in which it is noteworthy:

"Legitimization: Article 6.1.a) of the GDPR. The interested party gave their consent for the processing of their personal data for one or more specific purposes. Article 6.1.b) of the GDPR. Processing necessary for the execution of a contract in which the interested party is a party or for the application at their request of pre-contractual measures. Article 6.1.c) of the GDPR. The processing is necessary for compliance with a legal obligation applicable to the data controller. • Statutes."

EIGHTH: On 7/6/2024, a resolution proposal was issued stating: "That the Director of the Spanish Agency for Data Protection ARCHIVES the sanctioning procedure initiated against the ANDALUSIAN AGRICULTURAL COOPERATIVE B.B.B., at ***ADDRESS.1, with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR and another of Article 32 of the GDPR, classified in Articles 83.5 a) of the GDPR and Article 83.4 a) of the GDPR."

No allegations were received against it.

NINTH: From the actions taken in this procedure and the documentation in the file, the following has been accredited:

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PROVEN FACTS

1) The claimant belonged to the Andalusian Agricultural Cooperative Society B.B.B. (respondent), located in (...), until they requested their resignation on 2/12/2020. The respondent, whose corporate purpose is established in Article 2 of its Bylaws approved in April 2016, states in part: "The milling of the olives from the members and the Cooperative Society, storage, packaging, distribution, marketing, and sale of the olive oils obtained and all other products and by-products of the olive grove.

Preparation, sale, distribution, and exploitation of agricultural and livestock products from individual members or the cooperative society." The respondent indicated that it has approximately 300 members within the province of Jaén.

2) The respondent accepted the claimant's voluntary resignation request in a document signed on 3/12/2020; however, as established by the Bylaws, this communication is considered a notice, effective for one year from the receipt of the resignation request (Article 15.1 et seq. of the Bylaws), warning the claimant member of the obligation, according to the provisions of the Bylaws, to fulfill their obligations until the effective date of the resignation. Among others, the obligation to "contribute the olive harvest production until the effective date of the resignation." Article 55 of the Bylaws of the respondent Cooperative establishes that the economic year of twelve months begins on 1/10 and ends

on 30/09 of each economic year.

3) The claimant alleges that the President of the respondent entity convened an Ordinary General Assembly on ***DATE.1, including in the Agenda communicated to the members of the entity on 3/05/2022, the proposal for deliberation and voting on the agenda of a sanctioning file opened against the claimant, indicating in that agenda the details of this.

4) The respondent informs that the agenda for the General Assembly was sent to the cooperative members via email, indicating only the name and surname. The Bylaws of the respondent provide for such communication in Article 21.2.

5) It is evidenced in the records that the Governing Board of the respondent initiated a sanctioning file against the claimant before the convening of the General Assembly on ***DATE.2 for failure to fulfill the obligation as a member to contribute the complete harvest of the year 20/21 to the Cooperative, as recorded in the minutes of that date.

6) The respondent stated in prior proceedings regarding the incident that motivated the claim that:

- the sanctioning agreement was notified to the claimant, who did not express anything regarding it, and that

- The claimant owed the Cooperative an amount for an outstanding investment, and the respondent decided to file a lawsuit against them, indicating that, for this, prior approval by an absolute majority of the General Assembly was required, for which the Agenda with the matters to be addressed was sent to the Assembly members.

7) According to the minutes of the Ordinary General Assembly held on ***DATE.1, convened by the President and the Governing Board of the respondent, the first item on the agenda included a "deliberation and secret vote on the sanctioning file opened against the claimant (their name and surname were listed)," for failure to fulfill the obligations of the member," without containing or specifying which aspect or issue was being clarified, voting 34 in favor out of 37 votes, indicating in the agreement that "the Assembly ratifies this Governing Board to continue with the sanctioning file."

There is no evidence that the agreement made in the aforementioned meeting on ***DATE.1 regarding this deliberation was challenged by the claimant or that the agreement taken was reviewed.

8) According to the respondent, the basis of legitimacy on which they rely to carry out the processing of the data that is the subject of the claim is legitimate interest, regulated in Article 6.1.f) of the General Data Protection Regulation (GDPR), and they are also retained as required for the ongoing judicial procedure.

9) The respondent has a record of data processing activities related to "cooperative members." The purpose is "to carry out the management, functions, and activities inherent to the organization for the management of members." In terms of legitimacy, Article 6.1.a) of the GDPR and Article 6.1.c) (Bylaws) are cited.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II Treatment of Personal Data of the Claimant in the Context of the Cooperative Society

Article 1.2 of the GDPR states that the regulation protects the rights and fundamental freedoms of

natural persons, and in particular their right to the protection of personal data.

Article 4 of the GDPR, in definitions, states:

For the purposes of this Regulation, the following definitions shall apply:

1) “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

...

7) “controller” or “data controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;

...

12) “personal data breach”: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed.

Article 129 of the Spanish Constitution mandates public authorities to promote, through appropriate legislation, cooperative societies as a necessity to provide a suitable channel for collective initiatives of citizens that develop wealth-generating activities. The inherent elements of a society of people, such as cooperatives, can coexist harmoniously with market demands, with the ultimate goal of the group of members being economic profitability.

The values and principles that inspire cooperativism were articulated by the International Cooperative Alliance (ICA) at its 31st Congress, held on 23/09/1995 in Manchester, in the “Declaration on Cooperative Identity,” which prescribes the following values:

- Mutual aid
- Responsibility
- Democracy
- Equality
- Equity, and
- Solidarity

And defines a cooperative as: “an autonomous association of persons who have voluntarily united to meet their common economic, social, and cultural needs and aspirations through a jointly-owned and democratically-controlled enterprise.”

The regulation in this area consists of Law 27/1999 of 16/07 on Cooperatives, but since Autonomous Communities can assume exclusive competence, this means in practice that the scope of application of the aforementioned Law will be that which applies to cooperative societies operating within the state.

The Law provides a framework of flexibility where the cooperatives themselves can self-regulate and establishes the principles that must generally be applied in their actions, setting transparency as an inspiring principle that must be expressly included in cooperative regulations (explanatory memorandum).

The Statute of Autonomy for Andalusia, in its article 58.1.4, assigns exclusive competences to the Autonomous Community in the promotion, regulation, and organization of cooperatives, and more specifically the regulation and promotion of cooperativism.

In the context of Andalusia, Law 14/2011 of 23/12 on Andalusian Cooperative Societies (LSCA) and Decree 123/2014 of 2/09, which approves the Regulation of Law 4/201, are applicable. The LSCA

includes as “general principles that inform the constitution and operation of cooperative societies,” among others, “democratic structure, management, and control,” and “the participation of members in the activity of the cooperative, as well as in the results obtained in proportion to that activity.” Article 11 of the social statutes of the respondent is titled: “obligations of the members” and in its section b, it provides as an essential obligation of every member, the “contribution and delivery of all products obtained from the declared and registered agricultural operations in the cooperative,” and “as a very serious and fraudulent conduct of the member who fails to comply with this obligation,” as is the case with the claimant.

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The provision continues by deducing responsibilities for the aforementioned infringement: “In those cases where the member has not contributed the product or part of it or has not fully or partially utilized the cooperative services, they shall be obliged to pay the Cooperative a fee for amortization and general expenses, an amount that will be equal per Kg. of product not contributed to the amount deducted by the same weight measure from the other members who contributed their harvest. All of this is independent of the qualification of the conduct as established in the previous second paragraph.”

In this case, the fact of not having contributed any kilos of the harvest to the cooperative is a fact that admits no discussion, a fact that requires no legal verification, which implies the demand for responsibilities towards the claimant.

Considering in this case that despite the request for withdrawal on 3/12/2020, according to the Statutes, the member continues for one year in their capacity as such, until their request is fully effective on 3/12/2021, during which period the regime of rights and obligations of the Society to which they belong continues to apply, therefore, it is agreed that the claimant's data could continue to be processed. Furthermore, there remains a claim that is being resolved in judicial proceedings.

Thus, in the first instance, and generally, the respondent can legitimately process the claimant's data under the protection of Article 6.1.b) of the GDPR, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;”

In this case, according to the social statutes of the respondent that apply to all members, the claimant is not a member since 3/12/2021. Although at the date of the call to the Assembly for ***DATE.1, the claimant would appear to be disengaged with prior effects, the statutory relationship between the parties may require the continued processing of data due to the persistence of various types of effects and responsibilities arising from their membership and voluntary acceptance of the Social Statutes at the time. From the moment the member becomes part of it, the framework of obligations and rights to be fulfilled is established, which marks the execution that the status of a member implies, as is the case with the claimant.

III Analysis of the disciplinary procedure and its impact on the data processing carried out

The analysis of the facts regarding the disciplinary procedure, according to the documentation and information collected in the proceedings, would show the following state:

-Disciplinary procedure against the claimant initiated on ***DATE.2.

-In accordance with the Statutes of the respondent - Article 12.4 - “The motivated agreement of

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The sanction must be imposed within a maximum period of six months, counting from the day the disciplinary file is initiated, and it must be communicated in writing to the sanctioned member.”

The aforementioned provision 12.4 c) of the Articles of Association of the respondent continues by stating a different scenario in which “If this period elapses without a decision being made, the file will be automatically dismissed, without prejudice to the Cooperative's right to exercise any legal actions that may correspond in claiming the responsibilities that the member may have incurred,” which expands the scope not only to the requirement of disciplinary responsibilities.

Considering that very serious infractions prescribe after twelve months according to article 12.2 of the Articles of Association and that its article 12.3 establishes various amounts of fines as the sanction to be imposed for very serious infractions, it would also include the suspension of rights and/or exclusion from membership.

Moreover, the failure to fulfill the essential obligation to contribute the harvest of the year 20/21 to the Cooperative could generate a debt enforceable by it, which could translate into a liquid amount due. In the Cooperative's accounts, this could result in a debt that forms part of the passive mass of the respondent, potentially holding a credit right against the claimant, and could be considered a creditor of the respondent.

The Articles of Association provide that “the sanctioning agreement of the Board of Directors shall always have executive character, without prejudice to the procedure established for the challenge of the agreement and/or the legal actions that may correspond to the sanctioned member,” art 12.4.1.g) of the

IV On the communication to the members of the information regarding the disciplinary procedure of the claimant member

During this period of the member's tenure and thereafter, for the aforementioned purposes, the processing of the claimant's data does not contain elements that differ from those of the other members, since it concerns obligations and rights that would be applicable to all of them.

Thus, the manner of processing this data must comply with the guiding principles of all legitimate processing (including confidentiality), as outlined in article 5 of the GDPR, which constitutes a cumulative requirement to the legitimacy for processing, see, in this regard, the judgment of the CJEU 16/01/2019, Deutsche Post, C-496/17, EU:C:2019:26, paragraph 57 and cited jurisprudence.

In practice, this may mean that even processing personal data based on a legitimate cause for processing would not legitimize the excessive collection of data for a particular purpose, or the diversion from the specific purposes for which they must be collected and subsequently processed. These principles remain unchanged regardless of the processing and the risks to the data subjects. They imply, in broad terms, various obligations that fall on the individuals or entities that carry out processing.

To this end, it is worth noting that such processing must also comply with the rest of the principles according to article 5.1 of the GDPR, which states:

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“1. Personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’);
- b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes (‘purpose limitation’);
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay (‘accuracy’);

e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality').

Let us remember that these are the basic identity data of a member of a Cooperative Society of approximately 300 members, which are included in the agenda of the General Assembly of ***DATE.1, with the wording:

"Deliberation and secret voting on the sanctioning file opened against the member... for failure to comply with the obligations of the member"

Presumably to hold them accountable for the responsibilities arising from the infraction (fine), or, if applicable, the liquid claim for non-compliance, and whose decision was that the Assembly ratified the Board of Directors to continue with the sanctioning file against the member."

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It is estimated that the principle of confidentiality contained in Article 5.1(f) of the GDPR would have been infringed, and this is what is attributed to the defendant as a consequence of having processed the claimant's data in such a way that "appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage" was not guaranteed, "through the application of appropriate technical or organizational measures."

The infringement of the principle of confidentiality requires a result (an unauthorized or unlawful processing), including access by third parties, which in this case would be the partners, disclosure or communication of data, as well as the loss, destruction, or accidental damage of personal data.

The principle entails that the data controller cannot reveal or disclose its content, having the duty to safeguard it, and that the data cannot be known by any person or entity outside of it, as this is precisely what confidentiality consists of. Confidentiality aims to safeguard or protect individuals' right to maintain the privacy of their personal data and ultimately the power of control or disposition over their data. Therefore, the breach of the duty of confidentiality is classified as an infringement, and those obliged to uphold this duty may incur an infringement.

However, it should be noted that the duty of confidentiality is not absolute, and there may be cases where data can be communicated to third parties.

The GDPR distinguishes in the definitions of Article 4 of the GDPR:

"9) 'recipient': the natural or legal person, public authority, service, or other body to whom personal data are disclosed, whether or not it is a third party. However, public authorities that may receive personal data in the context of a specific investigation in accordance with Union or Member State law shall not be considered recipients; the processing of such data by those public authorities shall be in accordance with the applicable data protection rules for the purposes of the processing;

10) 'third party': a natural or legal person, public authority, service, or body other than the data subject, the data controller, the data processor, and the persons authorized to process the personal data under the direct authority of the data controller or the data processor;

The Statutes of the defendant grant the partners, among other rights:

- To participate in the economic and social activity of the Company under the terms established in the Statutes
- To access the register of partners,
- To obtain information about any aspect of the Company's operations under the terms established by the Cooperative Societies Law

Article 28, point k of the Statutes, attributes as a competence of the Governing Council
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"to agree on what is deemed appropriate regarding the exercise of rights and judicial actions that correspond to the cooperative," holding its representation before judges and courts, being able to confer powers of attorney to lawyers and agents, general or special powers for all and part of those, with the faculties deemed appropriate in each case, including initiating, restarting, processing, agreeing to, and withdrawing from conciliations, instances, procedures, files, lawsuits, with the addition that they may not be subject to decision by other bodies of the society as stated in article 28.2 point w of the Bylaws."

The LSCA grants flexibility in the regulatory framework of Cooperatives, expressly indicating minimums such as the calling of the General Assembly for the annual approval of the social accounts. To be considered a breach of the duty of confidentiality of the claimant's data for having communicated to the members that they were summoned to the Assembly, the supreme body of expression of the social will in matters attributed to it by Law and the Bylaws (art 27 of the LSCA), it could be concluded whether that information would be prohibited or not concerning the members forming the aforementioned Assembly, whether it could be a lawful processing or, conversely, if it were not lawful, the aforementioned technical and organizational measures must be imposed to prevent such dissemination.

Although there is no article that expressly assigns such a function, from what has been explained so far, the Assembly would decide in the event of an appeal against the resolution of a potential disciplinary sanction imposed by the Board of Directors (article 12.4.1. e) of the Bylaws of the respondent).

On the other hand, the fact that it is not expressly established does not mean that the aforementioned decision cannot be taken and discussed, given that in this case it is proposed by the Board of Directors, and as established in the aforementioned article 28.2 k) of the Bylaws, it can elevate the matter to the Assembly.

Likewise, the operation of the cooperative in fulfilling the obligations that would apply to all is not disproportionate or unlimited when the knowledge of the data has been adjusted to the minimum necessary to obtain the ratification to continue the management of the disciplinary file.

In this sense, to justify that the processing consisting of the communication of data to the members of the cooperative for the stated purpose, the respondent indicated article 6.1.f) of the GDPR, which states:

"f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child."

Although the concept of interest is related to that of purpose, which is the specific reason for processing the data, the objective or intention of data processing, the interest encompasses a greater implication that the data controller may have in the processing. In this case, the data controller safeguards the management of the common interests of the members and the Cooperative Society they comprise. This interest can benefit both the members and the Society. Furthermore, the interest is related to the operation of the Cooperative Society of which

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form part of the cited values of solidarity, transparency, and democratic values.

The rights of the claiming member are limited in this case by the voluntary and free acceptance of

being associated with the Cooperative, and therefore by the application of the Statutes of the claimed Cooperative to which they belong and by the maintenance and compliance with the legal bond established with the other associated members. The impact on the interests or rights of the claimant is minimal, being confined to the scope in which the necessary processing for the purposes of the claimed entity takes place.

The purpose of informing the members about the information and data derives from the legitimate exercise of the governing body of the claimed entity, and the matter is not foreign to the management and interests of the members, without which, within the circle in which the member's own data is processed by others and the matter, can it be said that there is a lack of confidentiality by being disclosed to the members themselves, given the social responsibility in which all participate.

Thus, it is not considered unauthorized or unlawful processing that the members were expressly called to a General Assembly to resolve issues that are precisely resolved based on the accredited interests, without the alleged infringement being substantiated, so it cannot be understood that the cited article 5.1.f) of the GDPR has been violated.

V Article 32 of the GDPR

In this case, there is a communication of personal data under the circumstances indicated above, to all members of the Cooperative who are called to decide in the Assembly.

The security of the processing of personal data is regulated in Article 32 of the GDPR, which states:

1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as

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as a result of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

Each processing operation must be subject to a set of security measures determined based on the likelihood and risk to the rights and freedoms of natural persons, which must be assessed with reference to the nature, characteristics, context, and purposes of the data processing, and such risk must be weighed based on an objective assessment. Therefore, the security measures to be adopted will depend on the processing being carried out and the risks it presents; this reflects a risk-based approach and indicates that there is no one-size-fits-all solution for security. The measures mentioned in Article 32 of the GDPR are a non-exhaustive set of those that can be taken.

In this case, the defendant was accused of violating Article 32 of the GDPR, as it was observed that it allegedly lacked appropriate technical and organizational measures to ensure that certain actions affecting the fundamental rights of individuals were carried out adequately in accordance with the obligations imposed by the GDPR. Specifically, this concerned the communication to cooperative members that was made via email regarding the holding of the General Assembly containing the data of the member, subject to disciplinary proceedings, so that they could vote secretly on what to do regarding the same, considering not only the lack of confidentiality but also the lack of security measures.

Considering that Royal Decree 123/2014 of 2/09, which approves the Regulation of Law 4/2011, of 23/12, on Andalusian Cooperative Societies, provides for the use of new technologies both in the part affecting the rights of information concerning member individuals and is included in Chapter V, "a special mention of the development of the legal provision regarding the use of new information and communication technologies in the calling and functioning of meetings of both the General Assembly and the Board of Directors.... This is a measure that responds to the requirement that the social progress achieved in the use of such means is reflected in cooperative societies, resulting in a more efficient management of these companies," which is expressly developed in Article 29.5, which states: "The social statutes may provide, within the notification and publicity regime of the call and in substitution of personal notification, the possibility of...

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the use of any technical, computer or telematic means that allow for new information and communication technologies, provided that, in addition to meeting the requirements set forth in Article 29.3 of Law 14/2011, of December 23, the use of these means guarantees the non-repudiation of the information received. Specifically, the cooperative society may establish in its Bylaws that the call for the General Assembly is made through an announcement published on the entity's website.

The society will guarantee the security of the website, the authenticity of the documents published on that page, as well as free access to it with the possibility of downloading and printing what is inserted therein.

Article 21.3 of the Bylaws of the respondent provides for the notification to each member of the call for the General Assembly by various means, including "any technical, computer or telematic means that allow for new information and communication technologies, provided that the protocols that the use of these means entails are observed and guarantee that the members will have effective knowledge of the call..."

However, it is noted that this accusation is related to the result contained and has been analyzed in the previous point, contained in Article 5.1.f) of the GDPR through the aforementioned referral and sharing with the same members for discussion in the General Assembly, and it cannot be deduced that any security measure had failed, but rather that it was the means established for such communication adopted expressly by the Community, without any record that more than the necessary information had been sent and within the circle of those who were the members of the respondent cooperative.

Regarding the use of such means, no incidents outside of the ordinary are revealed.

Therefore, the filing of the infringement of Article 32 of the GDPR is appropriate.

Thus, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO FILE the sanctioning procedure initiated against the ANDALUSIAN AGRICULTURAL COOPERATIVE B.B.B., at ***ADDRESS.1, with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR and another of Article 32 of the GDPR, classified in Articles 83.5 a) of the GDPR and Article 83.4 a) of the GDPR.

SECOND: TO NOTIFY this resolution to the ANDALUSIAN AGRICULTURAL COOPERATIVE B.B.B., at ***ADDRESS.1, with NIF ***NIF.1.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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